Sl. No. 2

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(Virtual Hearing)
PRESENT: SHRI RAJEEV BHARDWAJ – MEMBER (JUDICIAL)
: SHRI SANJAY PURI – MEMBER (TECHNICAL)
ATTENDANCE-CUM-ORDER SHEET OF THE HEARING HELD ON 10.06.2024 AT 01:00 P.M.

TC/CP. Nos.	CA/IA No.	Section / Rule	Name of Parties
CP(CAA)/8/230/AMR/2023		230	M/s. Gowtami Steel Products Private Limited (Transferor Company) and M/s. Gowtami Constructions Private Limited (Transferee Company)

ORDER

Present: Mr. S.S. Sarat Chandra, Ld. Counsel for the Petitioners.

Orders pronounced. CP(CAA)/8/230/AMR/2023 is allowed and recorded vide separate sheets.

Sd/-
SANJAY PURI
MEMBER (TECHNICAL)

Sd/-
RAJEEV BHARDWAJ
MEMBER (JUDICIAL)

Venkatesh & RSN

NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH AT MANGALAGIRI

CP (CAA)/8/230/AMR/2023
Connected with
CA (CAA)/4/230/AMR/2023

In the matter of Section 230 and 232 of the Companies Act, 2013

AND

In the matter of Scheme of Amalgamation of between **M/s GOWTAMI STEEL PRODUCTS PRIVATE LIMITED (1st PETITIONER/TRANSFEROR COMPANY) and M/s GOWTAMI CONSTRUCTIONS PRIVATE LIMITED (2nd Petitioner/Transferee Company) and their Respective Shareholders.**

In the matter of:

1. M/s. Gowtami Steel Products Private Limited,
(CIN: U27105AP1995PTC022086)
Having its registered office at:
Opp: Steel City Bus Depot, Kurmannapaelm,
Vishakapatnam - 530046, Andhra Pradesh, India.
Represented by its authorized signatory,
Sri G Mohan Rao, S/o. Rangiah, 503, Balaji Towers
Opp. YMCA Bench Road, Visakhapatnam- 02.

.... 1st Petitioner/Transferor Company

2. M/s. Gowtami Constructions Private Limited,
(CIN: U45200AP1999PTC033015)
Having its registered office at:
Opp: Steel City Bus Depot, Kurmannapaelm,
Vishakapatnam - 530046, Andhra Pradesh, India.
Represented by its authorized signatory,
Sri G Mohan Rao, S/o. Rangiah, 503, Balaji Towers
Opp. YMCA Bench Road, Visakhapatnam- 02.

... 2nd Petitioner/Transferee Company

Sd/-

Sd/-

Date of Order: 10.06.2024

CORAM

SHRI RAJEEV BHARDWAJ, MEMBER (JUDICIAL)
SHRI SANJAY PURI, MEMBER (TECHNICAL)

For the Petitioners: Mr. S.S.Sarat Chandra, Advocate
For the RD (SER): Mr. M.Harsha Vardhan Reddy, Assistant Director

ORDER
(Per: Bench)

1. The present joint Company Petition has been filed by Gowtami Steel Products Private Limited, 1st Petitioner/Transferor Company and Gowtami Constructions Private Limited, 2nd Petitioner/Transferee Company under Sections 230 and 232 of the Companies Act, 2013 seeking for sanctioning of the Scheme of Amalgamation (the Scheme for short) of 1st Petitioner/Transferor Company with the 2nd Petitioner/Transferee Company.

2. The Transferor Company and Transferee Company registered offices are situated in the state of Andhra Pradesh and therefore, it is within the jurisdiction of this Tribunal.

3. The Petitioner Companies have jointly filed the first motion application bearing CA(CAA)/4/230/AMR/2023 before this Tribunal seeking for dispensing with the holding of the meeting of the Shareholders, Secured Creditors and Unsecured Creditors of the Transferor and Transferee Companies, and dispense with the publication of notice in newspapers. The first motion application was disposed of by order dated 14.07.2023,

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the meetings of Shareholders, Secured Creditors and Unsecured Creditors of both the Companies were dispensed with for the reasons mentioned in the aforesaid order.

4. Brief facts leading to the filing of the present case are as follows:

i. M/s. Gowtami Steel Products Private Limited, 1st Petitioner/ Transferor Company was incorporated as a private limited company on 25.10.1995 and the Authorized share capital of the Transferor Company is Rs.1,00,00,000/- divided into 10,00,000 Equity shares of Rs. 10/- each. The issued, subscribed and paid-up capital is Rs. 20,00,000/- dived into 2,00,000 fully paid-up equity shares of Rs.10/- each. The main objects of the Transferor Company is to carry on the business of erecting, fabricating, establishing, running of rolling mill for the manufacture of Steel, Plates, Sheets, angles, bars, rods, wire drawings, of different sizes and specifications of all types of mild, high carbon special steels, Iron and Steel, alloy steels and to carry on the trade or business of Iron makers, steel makers, Iron and steel convertors, colliery properties, leasers, mines, smiths, dealers of manganese, coke engineers, tin plate makers, Iron foundries, metal workers, galvanized sheet makers, steel foundries, scarp iron and steel dealers, buyers, sellers and dealers of all kind of saleable manganese, magnesite clay, fire clay, stone lime and other metals, minerals, mineral gases and substances required thereon.

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ii. M/s. Gowtami Constructions Private Limited, 2nd Petitioner/ Transferee Company was incorporated as a private limited company on 10.12.1999 and the Authorized share capital of the Transferee Company is Rs.10,00,000/- divided into 1,00,000 Equity shares of Rs.10/- each. The issued, subscribed and paid-up capital is Rs.1,00,000/- dived into 10,000 fully paid-up equity shares of Rs.10/- each. The main objects of the Transferee company is to conduct the business and to provide service as estate agents and estate management and to collect rents, repair, look after and manage immovable properties for commission of any persons, firms and companies, governments and states, as well as this company, to give, take, let and sublet rent-farming contracts and to carryout, undertake or supervise any building, constructing, altering, improving, demolishing and repairing operations and all other it works and operations in connection with immovable estates and properties. To carry on business as house, land and estate agents and to arrange or undertake the sale, purchase or, advertise for sale or purchase, assist in selling or purchasing and find or introduce purchaser or vendors of and to manage land building and other property whether belonging to the company or not etc., carry on business to run, own, manage, administer diagnostic centers, scan centers, Nursing Homes, Hospitals, Clinics, Clinical Pathological testing laboratories, X-Ray and ECG Clinics in India and abroad.

iii. According to the Applicant Companies, the Transferee and Transferor Companies are closely held Private Limited Companies

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with their entire shareholding held by Family Members of G Mohan Rao and their relatives and friends. Because of existing integration and similarity of the business of the Transferee and Transferor Companies, as well as the administrative, management and accounting difficulties in carrying on the business by the management in two different entities and the time constraints of the management on account of multiplicity of work and compliances, the management of the companies are unable to fully focus on the business and achieve optimum business and the merger is therefore for consolidation of the business of the companies and the amalgamation of Transferor Company with the Transferee Company would inter alia help in consolidation of the businesses of the companies and would be beneficial to both the companies and the management will be in a better position to focus their attention and energies and achieve good and improved results. That the proposed amalgamation would be in the interest of not only the shareholders of the companies, but also the creditors, customers and employees generally and that consolidation of the businesses of both the companies would result in a financially and operationally sound entity with better net-worth and valuation, which in turn, would attract investment by investors and further funding by the bankers for expansion.

iv. The Board of Directors of both the Petitioner Companies have approved the Scheme of Amalgamation in their respective Board Meetings held on 09.02.2023. The appointed date is 01.04.2022.

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Consent, by way of Affidavit and No Objection to the Scheme supported by the Board, was also obtained from the Equity Shareholders, Secured Creditors and Unsecured Creditors of both the Petitioner Companies.

v. No dues or filing returns are pending with regard to the Statutory Authorities in relation to both the Petitioner Companies.

vi. No investigation or proceedings have been instituted or are pending in relation to both the Petitioner Companies.

vii. As per the section 230 (7) of the Act, the certificate dated 10.03.2023 issued by the Statutory Auditors of the Transferee Company K. V.Raghu Vamsi & Co., certified that accounting treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standards prescribed under Section 133 of the Act.

5. In the second motion proceedings, certain directions were issued by this Tribunal vide order dated 22.09.2023 and the same were complied with by filing a memo of compliance by dairy No.6370 dated 11.10.2023. It has also stated that the copies of notices were served upon the (a) Regional Director (SER), Hyderabad, MCA by Speed Post; (b) Registrar of Companies, AP, MCA and (c) Income Tax Department by way of email and Speed Post and acknowledgment receipts evidencing the delivery of notices are also attached to the Petition.

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6. The Regional Director (RD) filed his first report by dairy no.441 dated 08.04.2024 and raised the following objections and the Petitioner Companies replied to the same as detailed below:

S. No.	RD's Observations	Reply of the Petitioner Companies by way of affidavit along with amended Scheme
1	The Directorate i.e., RD (SER) has received a letter No. ROCV/Amal/STA/33015 & 22086/230/2023/1000 dated 08.01.2024 from the Registrar of Companies, Andhra Pradesh by pointing out certain observations as under:-	
	(a) To direct the Petitioner Companies to preserve its books of accounts & papers & records and not to dispose of without prior permission of the Central Government in terms of Section 239 of the Companies Act, 2013	The Petitioner Companies given their undertaking that as per the provisions of Section 239 of the Companies Act, 2013, the Transferee Company will preserve its books of accounts and papers and records of the Transferor and Transferee Companies permanently and shall not be disposing off without the prior permission of the Central Government
	(b) To direct the Petitioner Companies to ensure statutory compliance of all applicable laws and also on sanctioning of the present scheme the Petitioner companies shall not be absolved for any of its statutory liabilities in any manner.	The Petitioner Companies given their undertaking that the Transferee Company will comply with all statutory compliances of all applicable laws, Rules and Regulations and other matters and it is also promised that on sanctioning of the present scheme, the applicant company shall not be absolved for any of its statutory

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		liability in any manner and will be complied by the Transferee company relating to any compliances of Transferee Company".
	(c) To direct the Petitioner Companies, involved in the scheme to comply with Rule 17(2) of Companies (Compromise, Arrangement and Amalgamation) Rules, 2013 with respect to filing of order for confirmation of scheme to be filed in Form No.INC-28 with the concerned office of Registrar of Company by the Petitioner Companies.	The Petitioner Companies given their undertaking that the Petitioners will file Form No. INC-28 with the Registrar of Companies, Vijayawada within thirty days from the date of the receipt of copy of the order, or such other time as may be fixed by the Tribunal.
2	The Directorate i.e., RD (SER) has received vide email No. 02 of 2024 dated 05.01.2024 from the Official Liquidator, Hyderabad by pointing out certain observations as under:-	
	(a) To direct the Petitioner Companies to furnish an undertaking stating that there would be no retrenchment of any employee who were in service as on the Appointed Date (i.e. 01.04.2022) as per Clause 1.11 of Part-"11" of the Scheme, all staff, workmen and employees engaged in Transferor Company shall be the staff, workmen and employees of Transferee Company.	The Petitioner Companies given their undertaking by stating that the Scheme of Amalgamation is amended to the effect as stipulated under section 232(3)(g) of the Companies Act, 2013, protecting the interest of the employees of the Transferor Company.

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	(b) To direct the Petitioner Companies to furnish an undertaking that the Record Date would be decided and fixed mutually by the Board of Directors of Transferor & Transferee Companies immediately after sanction of the Scheme and before dissolution of Transferor Company.	The Petitioner Companies given their undertaking by stating that the Record Date/Appointed Date is fixed as 1st April 2022, upon mutual agreement between the Applicant/Petitioner Companies. It is further submitted that Post sanctioning of the Scheme, the Record Date / Appointed Date shall be 1st April 2022 without any modifications.
	(c) To direct the Petitioner Companies to furnish an undertaking to the effect of "not to deviate from the provisions of Accounting Standard-14(Accounting for Amalgamations) – Pooling of Interest Method"	The Petitioner Companies given their undertaking that the Petitioner Companies shall not deviate from provisions as stipulated in Accounting Standard 12 and ensure that there will not be any deviations from any applicable provisions for time being in force.
	(d) The Transferor Company is a loss making company getting merged with profit making Transferee Company as per the Financial Statements of the Companies for the Financial Year 2021-22. Hence, the Income Tax implications due to merger needs to be complied by the Transferee Company.	The Transferee Company given their undertaking that all such compliance as stipulated in the Income Tax Act, originating due to this Merger.
3	The Directorate i.e., RD (SER) has received a letter dated 13.12.2023 stating that the Petitioner Companies has paid their dues and further stating that e-proceedings are pending in this case for AY 2016-2017.	The Petitioner Companies given their undertaking to comply with all the provisions of Income Tax, if any proceedings proposed to be initiated against the Transferor Company.

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4	After examination of the Scheme, the RD (SER) by pointing out certain observations are as under:-	
	(a) The appointed date mentioned in the scheme is 01.04.2022 and the petitioner companies have filed Balance Sheets up to 31.03.2022.	The Petitioner Companies submitted that they have already filed their Annual Returns upto 31.03.2023 and also filed the attested copies of challans of AOC4 & MGT 7.
	(b) Both the Petitioner companies are having related party transactions during the last two years. In this regard, petitioner companies may be directed to furnish an undertaking with regard to compliance of the provisions of Section 188 of the Companies Act, 2013.	The Board of Directors of the Petitioner Companies given their undertaking that the provisions of section 188 of the Companies Act, 2013 are being complied with from time to time and submitted that the all the related party transactions entered into between the Petitioners Companies are in the nature of ordinary business transactions on arm's length basis.
	(c) As per the Balance Sheet as at 31.03.2022, the Transferor and Transferee companies have given loans and advances. In this regard, petitioner companies may be directed to furnish an undertaking stating that necessary compliances have been made under section 185/186 of the Companies Act, 2013	The Petitioner Companies given their undertaking that all the necessary compliances have been fulfilled under section 185/186 of the Companies Act, 2013 for all the transactions such as loans and advances granted /guarantees by the Petitioner Companies.
	(d) As per Clause 7 of the Scheme, it is stated that upon the Scheme coming into force, the Authorized Capital of the Transferee Company shall be Rs.1,10,00,000/- and the	The Petitioner Companies given their undertaking that the Transferee Company, subsequent to the amalgamation and in pursuance to Section 232(3)(i) of the Companies Act,

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	capital clause in the MOA and relevant Regulation if any in the AOA of the Transferee Company shall be deemed to have been amended accordingly without any further act or deed. In this regard, the transferee company shall comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 and pay the differential fee after setting of the fee already paid by the Transferor Company	2013, would pay the stamp duty if any payable to the Central or State Governments after setting off the fees of any already paid by the transferor Company on its authorized capital.
	(e) As per Clause 9 of the Scheme, it is stated that upon the scheme coming into force, the cross investment either in share capital or loans or any other form in the companies if not already repaid will be cancelled and the Transferee Company shall square up such transactions and pass appropriate entries in its books of accounts.	The Petitioner Companies given their undertaking that the Transferee Company, subsequent to the amalgamation that upon the scheme coming into force, the cross investment either in share capital or loans or any other form in the companies if not already repaid will be cancelled and the Transferee Company shall square up such transactions and pass appropriate entries in its books of accounts as per the applicable Accounting Standards.
	(f) As per Clause 12 (vi) of the Scheme, it is stated that in case of any differences in accounting policies will be adopted by the Board of Directors of the Transferee Company following the amalgamation. The effects on therein Financial Statements,	The Petitioner Companies given their undertaking that "As per the directions of the Hon'ble Regional Director, South East Region, MCA, Hyderabad, the scheme has been modified by incorporating the clauses "Accounting Standard – 5" instead of Accounting Standard

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	any changes in accounting policies shall be adjusted in accordance with Accounting Standard-14 Viz., Net Profit or Loss for the period, prior period items and changes in Accounting Policies governed by the Companies (Accounting Standards) Rules, 2006. In this regard, the Transferee Company may be directed to strictly adhere to the above. The above statement in the scheme requires modification since change in Accounting Policies has been described under "Accounting Standard-5" as applicable for Accounting Standard-14.	14 at the specifies clause 12 (vi) of the Scheme of Amalgamation."
	(g) Para 12 (iv) of the Scheme speaks that the difference between the amount of Net Assets taken over by the Transferee Company over the investments in the Transferor Company along with any other unrealised assets of the Transferee Company, whether fixed or intangible or current or any other diminution in the valuation of investment if any to the extent these items identified and considered necessary by the Board of Directors of the Transferee Company shall be adjusted against such accounts of the Transferee Company as may deem fit by the Board of	In pursuance of the orders of the Regional Director, South East Region, MCA, Hyderabad, the clause no para 12(iv) have been deleted and a new para was adopted by inserting the provisions of pooling interest method of Accounting Standard 14.

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	Directors. It is submit that the above contention of the scheme does not fall under the ambit of the provisions of Accounting Standard-14 read with Section 129 of the Act. In view of the above, it is submitted to direct the petitioner companies to delete such para from the scheme by adopting the provisions of Pooling Interest Method of Accounting Standard-14	
	(h) Para 12(vii) of the Scheme, it is stated that the difference between the amount recorded as consideration i.e., share capital on issue of New Equity Shares allotted by Transferee Company and the existing equity share capital of Transferor Company pursuant to the order of the Hon'ble NCLT shall be recorded as Capital Reserve/Good will as the case may be. The above contention speaks that differential amount of New Equity Share Capital allotted pursuant to the scheme and old equity share capital shall be treated as Capital Reserve/Goodwill which is also not as per the provisions of the Accounting Standard-14. IN view of the above, the petitioner Companies may be directed to delete the above clause of the scheme by	In pursuance of the orders of the Regional Director, South East Region, MCA, Hyderabad, the Clause No para 12(VII) have been deleted and a new para was adopted by inserting the provisions of Accounting Standard 14.

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	adopting the provisions of Accounting Standard-14	
	(i) The Scheme is silent about protection of interest of employees of the Transferor Company as stipulated under Section 232(3) (g) of the Act. The Hon'ble NCLT may kindly pass order to amend the scheme by incorporating the matter stated under Section 232(3) (g) of the Companies Act, 2013.	In pursuance of the orders of the Regional Director, South East Region, MCA, Hyderabad, a new clause was adopted by incorporating the matter stated under section 232(3)(g) of the Companies Act, 2013 relating to immunity of the Employee of the Transferor Company in the Transferee Company on sanctioning of the Scheme of Amalgamation.

7. The Regional Director (RD), after considering the said reply by the Petitioner Companies, did not raise any further objections against accepting the Scheme of Amalgamation of the Petitioner Companies.

8. We have heard the Learned Counsel appearing for the Petitioners, Assist Director appearing for the RD (SER), and perused the records.

9. Supreme Court in ***Miheer H. Mafatal V/s Mafatlal Industries Ltd JT 1996 (8) 205*** while considering the scope of the jurisdiction of the Company Court in respect of matters of sanction of the Scheme of Amalgamation as per the provisions of Section 391 read with Section 393 of the Companies Act, 1956, observed as under:

> *"It is commercial wisdom of the parties to the scheme who have taken an informed decision about the usefulness and propriety of the scheme by supporting it by the requisite majority vote that has to be kept in view by the Court. The Court certainly would not act*

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as a court of appeal and sit in judgment over the informed view of the concerned parties to the compromise as the same would be in the realm of corporate and commercial wisdom of the concerned parties. The Court has neither the expertise nor the jurisdiction to delve deep into the commercial wisdom by the creditors and members of the company who have ratified the Scheme by the requisite majority. Consequently, the Company Courts jurisdiction to that extent is peripheral and supervisory and not appellate."

In view of the above Supreme Court Judgment, this Tribunal is not supposed to examine the commercial wisdom of the shareholders and creditors.

10. On the basis of the above facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, reports of the Regional Director and reply/undertakings of the Petitioner Companies thereon and the documents produced on record, the Scheme of Amalgamation appears to be fair and reasonable and is not contrary to public policy and not in violation of any provisions of law. It appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the Petitioner Companies. We are of the considered view that the proposed Scheme of Demerger is bona fide and in the interest of the shareholders and creditors.

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11. In the result, the Company Petition is allowed with the following directions:-

a) Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioners.

b) While approving the Scheme as above, it is further clarified that this order will not be construed as on order granting exemption from payment of stamp duty or taxes or any other charges, if payable, as per the relevant provisions of law or from any applicable permissions that may have to be obtained or, even compliances that may have to be made as per the mandate of law.

c) The Scheme of Amalgamation (Copy of the Revised Scheme enclosed at Page No.**11 to 41** of the Affidavit filed on 15.04.2024) is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their respective Shareholders and Creditors, Employees and all concerned under the Scheme.

d) The Scheme shall become effective from the Appointed Date i.e., **01.04.2022** and shall be made operational from the date of filing of the orders with the Registrar of Companies.

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e) That the Transferor Company shall stand dissolved without following the process of winding-up; and

f) All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Investment Undertaking along with all the assets and liabilities of the Transferor Company shall stand transferred to and vest in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

g) All the liabilities of the Investment Undertaking of the Transferor Company be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 and 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

h) All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Investment Undertaking of the Transferor Company, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced

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by or against it as fully and effectually against the Transferee Company.

i) All taxes paid or payable by the Investment Undertaking of the Transferor Company including existing and future incentives, un-availed credits and exemptions, benefit of carried forward losses and other statutory benefits, shall be available to and vest in the Transferee Company.

j) All proceedings now pending by or against the Investment Undertaking of the Transferor Company, if any, shall be continued by or against the Transferee Company.

k) All employees in the service of the Investment Undertaking of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company on date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on terms and conditions no less favourable than those on which they were/ are engaged, as on the Effective Date.

l) The Petitioner Companies are directed to preserve their books of accounts and papers and records and not to dispose of without the prior permission of the Central Government in terms of provisions of Section 239 of the Companies Act, 2013.

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m) All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

n) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the Registrar of Companies, Andhra Pradesh electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

o) Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Amalgamation ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Amalgamation under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

p) The Petitioner Companies are directed to issue newspaper publication with respect to approval of Scheme of Amalgamation, in the same newspaper in which previous publications were issued

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in order to ensure transparency/dissemination of complete information to all concerned parties about the approval granted by the Tribunal for the Scheme as proposed.

q) The Petitioner Companies are further directed to take all consequential and statutory steps required in pursuance of the approved Scheme of Amalgamation under the provisions of the Act.

r) The Petitioner Companies are also directed to strictly comply with all the Undertakings given by them.

s) The Petitioner Companies are directed to strictly adhere to the above directions and applicable provisions of the Companies Act.

t) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

12. Accordingly, the Scheme stands sanctioned and the Company Petition bearing CP(CAA)/8/230/AMR/2023 connected with CA(CAA)/4/230/AMR/2023 is allowed and stands disposed of, in terms of the above order.

Sd/-

SANJAY PURI
MEMBER (TECHNICAL)

Sd/-

RAJEEV BHARDWAJ
MEMBER (JUDICIAL)

Swamy Naidu